

CASE SUMMARY

State v. Imran

SC No. 743/2023 | FIR No. 187/2022, PS Seelampur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	11 March 2026 (date of inspection / offence: 3 February 2022)
PARTIES	State (BSES Yamuna Power Ltd.) v. Imran S/o Late Salauddin, R/o B-94, 4th Floor, near Main Market, New Seelampur, Delhi-110053
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 11,61,828/-) settled and the amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Imran dishonestly abstracted electricity at his unmetered fourth-floor premises — powering a GSM (mobile telecom) antenna tower as well as domestic use — through a two-core black wire hooked from BSES Pole No. YVR-V-306, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether, the entire tapping wire not having been seized and the accused being absent at the inspection, he discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 3 February 2022 at about 1.45 p.m., an enforcement team of BSES Yamuna Power Ltd. headed by Sh. Saurabh Sharma (Manager) inspected the fourth-floor premises at H. No. B-94, near Main Market, New Seelampur, Delhi. No electricity meter was installed; supply was being drawn through a yellow wire connected from the pole (near the transformer) and joined onward to a two-core black wire at the balcony of the premises, tapped from BSES Pole No. YVR-V-306 some 12–15 metres away. The connected load was 14.046 KW — powering a GSM antenna tower on the premises as well as domestic use. The accused was not present; family members present identified Imran as the owner and user of the electricity. Sh. Deepak Kumar videographed the proceedings and furnished a Section 65B certificate; an Inspection Report, Load Report, Seizure Memo and Advisory Notice were prepared at the spot. Following the applicable (commercial) tariff, the company assessed a theft demand of Rs. 11,61,828/-, which went unpaid, and on its Authorised Officer's complaint FIR No. 187/2022 was registered at PS Seelampur.

Only the accessible black wire (the case property) was seized and sealed; the yellow segment could not be removed because of its excessive height. Notice under Section 251 Cr.P.C. was given on 16 November 2023; the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 Saurabh Sharma (team head; proved the CD, inspection report, load report, seizure memo, advisory notice, theft bill and complaint); PW-2 Deepak Kumar (videographer; proved the video and the Section 65B certificate Ex.PW2/1); and PW-3 ASI Devraj (IO; proved the FIR, site plan, Section 41A notice, Aadhaar and ownership documents, and Pabandinama). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; he led no defence evidence. His counsel submitted that the civil liability had been settled and the settlement amount deposited.

REASONING OF THE COURT

HEADNOTE

Powering a GSM antenna tower from unmetered premises by hooking the licensee's pole is direct theft under Section 135(1)(a) — the telecom load producing an assessment of over Rs. 11.6 lakh — and neither the accused's absence at the inspection (family members identifying him as owner and user) nor the failure to seize the entire tapping wire (part being out of reach) defeats the prosecution. The un rebutted third-proviso presumption convicts.

Section 135(1)(a) was engaged by the pole hook feeding the antenna tower. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the wire run from BSES Pole No. YVR-V-306 to the unmetered premises — feeding a GSM antenna tower and domestic load — as a clause (a) connection with the licensee's lines. On proof of that artificial means the third proviso's presumption arose.

The inspection was proved though the accused was absent. The accused was not at the premises during the inspection, but his family members present identified him as the owner and user of the electricity — a fact he never denied in cross-examination. PW-1 explained the mode of theft (a yellow wire from the pole near the transformer joined to a black wire at the balcony), the 14.046 KW load and the running antenna tower; the consistent testimony and the videography established the factum and manner of the theft and fixed the accused as the consumer.

Partial seizure of the tapping wire was not fatal. The defence pressed that the case property was planted because the entire wire was not seized. The Court accepted PW-1's explanation that the yellow segment could not be removed due to its excessive height, while the accessible black wire was seized and sealed; and it held that seizure of the wire is only extra corroborative material — the theft having been independently videographed — so non-seizure of the whole did not weaken the case.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

The presumption was compulsory, and settlement of the bill fortified the case. Following *Neeraj Dutt* and *Hiten P. Dalal* on the compulsory presumption and its rebuttal standard, the Court noted the accused led no defence evidence, claimed no Genset, and produced no paid bills (*Mukesh Rastogi*; Section 106 onus). His settlement and deposit of the Rs. 11,61,828/- bill, rather than protest against a false claim, fortified the prosecution case. The presumption stood un rebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises — powering a telecom antenna tower — through a wire hooked from the licensee’s pole as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 11,61,828/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises and that Imran was found (through the inspection, the family’s identification and the videography) to be the user indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption. **Imran is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

The largest theft in the set — a mobile-tower installation drawing 14 KW off a pole hook, assessed at over Rs. 11.6 lakh. Six propositions stand out:

- **Telecom/commercial loads drive the assessment sky-high.** Powering a GSM antenna tower (14.046 KW) produced a Rs. 11,61,828/- bill — roughly twenty times a typical domestic tap — because the assessment follows the actual (commercial) tariff, doubled under Regulation 63.
- **The accused’s absence at inspection is no shield.** Family members present identifying him as the owner and user, coupled with his failure to deny it, fixed the accused as the “consumer” answerable for the theft.
- **Partial seizure of the wire is not fatal.** Where part of the tapping wire is out of reach, seizing the accessible segment suffices; seizure is only corroborative, the theft being videographed.

- **A rooftop tower is not an innocent explanation.** That the load ran a functioning telecom tower confirmed a substantial, sustained abstraction rather than incidental domestic use.
- **Settlement corroborates guilt.** Settling and depositing the (very large) theft bill was read as conduct inconsistent with innocence.
- **The reverse-onus presumption did the rest.** No meter, an unexplained running load, no Genset, no paid bills — the compulsory presumption convicted (*Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.